

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 7, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, MAY 7, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, MAY 6, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0091838 DISCOVER BANK v. KNEDEL, SCOTT

Plaintiff's Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) The dismissal entered by the court on January 12, 2026, is vacated. Judgment shall be entered in favor of plaintiff and against defendant in the principal amount of \$7,851.35, plus court costs in the amount of \$296.02, for a total judgment entered of \$8,147.37.

2. M-CV-0096906 ALESSANDRI, ERNEST v. CHASTAIN, CHRISTY

Defendant's Demurrer to Complaint for Unlawful Detainer

Defendant demurs to plaintiff's verified complaint on the grounds the court lacks subject matter jurisdiction, the complaint is uncertain, and does not allege facts sufficient to state an unlawful detainer cause of action. A demurrer tests the legal

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sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.) A pleading is "uncertain" if it is ambiguous and unintelligible. (Code Civ. Proc. § 430.10, subd. (f).)

Code of Civil Procedure section 1166, subdivision (d) requires
in an action regarding residential property, the plaintiff shall attach to the complaint the following:

- (A) A copy of the notice or notices of termination served on the defendant upon which the complaint is based.
- (B) A copy of any written lease or rental agreement regarding the premises. Any addenda or attachments to the lease or written agreement that form the basis of the complaint shall also be attached. The documents required by this subparagraph are not required to be attached if the complaint alleges any of the following:
 - (i) The lease or rental agreement is oral.
 - (ii) A written lease or rental agreement regarding the premises is not in the possession of the landlord or any agent or employee of the landlord.
 - (iii) An action based solely on subdivision (2) of Section 1161.
- (2) If the plaintiff fails to attach the documents required by this subdivision, the court shall grant leave to amend the complaint for a five-day period in order to include the required attachments.

(Code Civ. Proc., § 1166, subd. (d)(1)–(2).)

Here, plaintiff's complaint alleges both nonpayment of rent pursuant to Code of Civil Procedure section 1161, subdivision (2) and failure to perform covenants pursuant to Code of Civil Procedure section 1161, subdivision (3). Additionally, plaintiff's complaint alleges the lease agreement was written and that it is attached to the complaint.

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege an unlawful detainer cause of action against defendant because the lease agreement is not attached and none of the exceptions apply.

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Accordingly, defendant's demurrer is sustained with leave to amend. Plaintiff shall file and serve an amended complaint on or before **May 12, 2026**.

Defendant Christy Chasatain's Motion to Quash Summons and Service of Summons

Defendant moves to quash the service of the three-day notices attached to the complaint and summons on the grounds that service was not properly effectuated.

Plaintiff bears the burden "to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.) The filing of a proof of service that complies with statutory standards creates a rebuttable presumption that service was proper. (Evid. Code § 647.)

Here, the proofs of service for the posting and mailing of the three-day notices attached to the complaint and the personal service of the summons and complaint, and were effectuated by a registered California process server, comply with the statutory standards. Defendant's denial that personal service was not effectuated, absent any other affirmative evidence, is not sufficient to overcome the presumption. (*Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1428.) Nor does defendant provide authority that walking onto her property past a gate invalidates service.

Accordingly, defendant's motion to quash is denied. Defendant shall file a responsive pleading five days after service upon them of the order after hearing. (Code Civ. Proc., § 1167.4, subd. (b).)

3. S-CV-0047160 GUINASSO, FRANCES v. CITY OF LINCOLN

Defendant County of Placer's Motion for Summary Judgment

Defendant County of Placer moves for summary judgment as to plaintiffs Frances Guinasso, individually, and as an heir for Jacob Newell (deceased) and Thomas Newell in plaintiffs' fourth amended complaint. Because defendant moved only for summary judgment, and did not move for summary adjudication in the alternative, defendant must defeat all of plaintiffs' causes of action to prevail. (Code Civ. Proc., § 437c, subds. (a)(1), (c).) *Slovensky v. Friedman* (2006) 142 Cal.App.4th 1518, 1527.) Here, however, defendant does not present evidence, and therefore does not meet its initial burden, to defeat plaintiffs Natash Clark, individually and as Guardian Ad Litem for Brinley Newell and

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Estate of Jacob Newell, through estate administrator, Frances Guinasso's causes of action. As such, defendant does not meet its burden to establish the action has not merit to warrant summary judgment.

Nor can the court treat the motion for summary judgment as a motion for summary adjudication. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1545–46.)

Accordingly, defendant's motion for summary judgment is denied.

4. S-CV-0048888 WOODLAND, LOGAN v. VOLKSWAGEN GROUP

Plaintiffs' Motion to File Under Seal Portions of Petitions and Orders for Compromise of Minors' Claims and Creation of a Trust, and all Related Later Filed Documents

Plaintiff's unopposed motion to seal is granted.

Court records are presumed to be open to the public unless confidentiality is required by law. (Cal. Rules of Court, rule 2.550, subd. (c).) This presumption, however, is not absolute. (*See McNair v. National Collegiate Athletic Assn.* (2015) 234 Cal.App.4th 25, 31.) The court may order a record be filed under seal upon express findings of fact that establish: (1) an overriding interest that overcomes the public's right to access, (2) an overriding interest supporting sealing the record, (3) a substantial probability that the overriding interest will be prejudiced if the record is not sealed, (4) the sealing of the record is narrowly tailored, and (5) there are no less restrictive means to achieve the overriding interest. (Cal. Rules of Court, Rule 2.550, subd. (d).) This rule applies to sealed records or records proposed to be sealed by court order. (*Id.* at subd. (a)(1).)

The court finds, based on the moving papers and supporting documents, that an overriding interest exists in the parties' settlement amounts and related financial and personally identifying information that overcomes the right of public access to the records to be sealed. (Cal. Rules of Court, Rule 2.550, subd. (d).) The court finds that a substantial probability exists that the overriding interest will be prejudiced if the records are not sealed. (*Ibid.*) The court further finds the proposed sealing of information is narrowly tailored, and that no less restrictive means to achieve the identified overriding interest exists. (*Ibid.*)

Plaintiffs Logan Woodland, Madison Woodland, and Peyton Woodland's respective petitions for approval of compromise of claim for minor are sealed. The clerks shall

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file plaintiffs' redacted petitions for approval of compromise of claim for minor on or before **May 14, 2026**.

The court further notes that any person may make a motion to unseal the document in accordance with California Rules of Court, Rule 2.551, subdivision (h).

Amended Petition for Approval of Compromise of Claim for Minor (Logan Woodland)

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

Petition for Approval of Compromise of Claim for Minor (Peyton Woodland)

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

Petition for Approval of Compromise of Claim for Minor (Madison Woodland)

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

5. S-CV-0050766 WILLIAMS, VICTORIA v. PHILLIPS, SEAN

Plaintiff's Motion for Leave to File First Amended Complaint

Preliminary Matters

The court is concerned about an undue consumption of very precious and limited resources especially in situations where a meaningful meet and confer process is required but not performed or completed. If oral argument is requested, personal appearance is required. Remote appearance is not authorized. The parties shall be prepared to discuss why the meet and confer process was not performed; not discussed in any submitted declaration; and why the court should not impose

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monetary sanctions of \$1,000 per each party for failure to engage in a meaningful meet and confirm process. (Placer County Local Rules, rule 20.2.1; Code Civ. Proc., § 575.2.)

Ruling on Motion

Plaintiff's motion for leave to file a first amended complaint is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Plaintiffs shall file and serve the first amended complaint attached to the declaration of D. Michael Phillips on or before **May 14, 2026**.

6. S-CV-0051334 POMEROY, DANIELA v. VERMA, GAUTAM

The motion to intervene is dropped from calendar as no moving papers were filed with the court.

7. S-CV-0052012 MENDIOLA, VENANZIO v. HYUNDAI OF ROSEVILLE

Plaintiff's Motion for Preliminary Approval of Class and Representative Action

Plaintiff's motion for preliminary approval is continued to **June 25, 2026, at 8:30 a.m. in Department 3**. Plaintiff shall file a supplemental declaration on or before **June 17, 2026**, that addresses (1) the discrepancy between the contemplated payments to the LWDA and PAGA Group Members in the motion versus the settlement agreement attached to the declaration of Justin Lo and (2) whether plaintiff waives a PAGA Representative Service payment.

8. S-CV-0052744 LANDRUM, WILLIAM v. SQUAW VALLEY ACADEMY

The motion for protective order is dropped from calendar in light of the court order requiring the parties to retain—which they have—a discovery referee to oversee discovery matters.

9. S-CV-0053444 BERGFALK, BRIAN v. MLV HOLDINGS

The motion for summary judgment is continued to **June 18, 2026, at 8:30 a.m. in Department 3**.

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10. S-CV-0054696 FEHER, ANTOINE v. ANDERSON TOW SERVICE

Defendant's Motion to Set Aside Default

Defendant's unopposed motion to set aside the default is granted. (Code Civ. Proc., § 473, subd. (d)). The default entered on December 1, 2025, is set aside. Defendant shall file and serve its proposed answer attached to the declaration of Alla V. Vorobets on or before **May 14, 2026**.

11. S-CV-0055640 GRAY, BOBBY v. PLACER COUNTY SHERIFF'S OFC.

Petitioner's Verified Petition for Writ of Mandate; Injunctive Relief, and Declaratory Relief

On October 2, 2025, the court continued the hearing for petitioner's writ of mandate to January 22, 2026, for petitioner to serve the writ on respondents in the same manner as a summons in a civil action and file a proof of service evidencing the service.

On January 22, 2026, the court again continued the hearing for petitioner's writ of mandate to May 7, 2026, for petitioner to serve the writ on respondents in the same manner as a summons in a civil action and file a proof of service evidencing the service.

A review of the court record reflects petitioner has not filed a proof of service indicating he has served the writ of mandate on respondents in the same manner as a summons in a civil action. Accordingly, petitioner's writ of mandate is dropped from calendar subjecting to being re-noticed after proper service on respondents is effectuated.

12. S-CV-0055740 LEGRAND, BRIAN v. LEGRAND, KAREN

The demurrer is dropped from calendar as no moving papers were filed with the court.

13. S-CV-0056016 DURAN, CARLOS v. FORD MOTOR COMPANY

The motion to compel arbitration is dropped from calendar as plaintiff dismissed the moving party from the action on April 27, 2026.

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14. S-CV-0056028 JANSEN, DANIEL v. J.B. HUNT TRANSPORT SERVICES

Defendant State of California by and Through the California Highway Patrol's
Demurrer to Complaint

Defendant demurs to the fourth cause of action in plaintiff's complaint on the grounds the complaint does not allege facts sufficient to state the fourth cause of action for dangerous condition of public property. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Government Code Section 835 provides that
a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:
(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or
(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

Government Code Section 830, subdivision (a) clarifies that "Dangerous condition" means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used."

Plaintiffs alleging a dangerous condition of public property cause of action against public entities cannot generally allege what the condition is but instead "must specify in what manner the condition constituted a dangerous condition." (*Summerfield v.*

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City of Inglewood (2023) 96 Cal.App.5th 983, 994.) To that end, “[a] dangerous condition exists when public property “is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,” or it possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” (*Ibid.* [internal quotation marks omitted].) Importantly, plaintiff must plead the public entity had ownership or control of the property at the time of the injury. (*Tolan v. State of California ex rel. Dept. of Transportation* (1979) 100 Cal.App.3d 980, 984.)

Streets and Highways Code section 90 provides the Department of Transportation “shall have full possession and control of all state highways and all property and rights in property acquired for state highway purposes.” (Sts. & Hy. Code, § 90.) Additionally, the Department of Transportation is responsible for improving and maintaining the state highways. (*Id.* at § 91.)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege facts sufficient to state a dangerous condition of public property cause of action against defendant as there are insufficient allegations that defendant owned or controlled the area where the alleged dangerous condition of public property existed.

Accordingly, defendant’s demurrer is sustained with leave to amend as to the fourth cause of action. Plaintiff shall file and serve an amended complaint on or before **May 18, 2026**.

15. S-CV-0056216 SCHLEIN, BRIAN v. PACHECO-ZEPEDA, LUIS

Defendants Luis Alberto Pacheco-Zepeda and Lilyana Marie Jordan’s Demurrer to Plaintiff, Brian Schlein’s Complaint

Defendants demurs to the second cause of action for intentional tort in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the second cause of action. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of

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law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Here, a careful review of the complaint and taking all factual allegations in the complaint as true, plaintiff alleges facts sufficient to minimally state the second cause of action for intentional tort of assault and/or battery. Accordingly, defendants' demurrer is overruled in its entirety.

Defendants Luis Alberto Pacheco-Zepeda and Lilyana Marie Jordan's Motion to Strike Portions of Plaintiff Brian Schlein's Complaint

Defendants move to strike paragraph 10(c), prayer 14(a)(2), and the second cause of action for intentional tort in plaintiff's complaint. (Code Civ. Proc. §§ 435, 436.)

Punitive damages are available "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294, subd. (a).) Malice is "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (*Id.* at § 3294, subd. (c)(1).) Oppression is "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (*Id.* at § 3294, subd. (c)(2).)

Here, a careful review of the complaint and taking all factual allegations in the complaint as true, plaintiff alleges facts sufficient to minimally state the second cause of action for intentional tort of assault and/or battery and a prayer for punitive damages. Accordingly, defendants' motion to strike is denied in its entirety.

Defendants shall file and serve an answer to plaintiff's complaint on or before **May 18, 2026**.

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16. S-CV-0056330 IN RE THE PETITION OF BURNS, MOLLY

This matter has been reassigned by the **Presiding Judge Jeffrey S. Penney** to be heard by the **Honorable Michael W. Jones**.

Motion to Set Aside Order Recognizing Change of Gender and Sex Identifier

Petitioner's motion to set aside order recognizing change of gender and sex identifier, issued by the court on December 29, 2025, is set aside based on petitioner's mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b).)

17. S-CV-0056898 IN RE THE PETITION OF WHITE BEAR, BRANDON

Petition for Approval of Minor's Compromise Claim (Noa White Bear)

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

Petition for Approval of Minor's Compromise Claim (Willow White Bear)

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)